creating an automatic, perpetual, searchable warehouse for all such information.

A handful of other documents released by Snowden come into a similar category where a public interest defence would be plausible. If the NSA has indeed been deliberately promoting faulty encryption software, or tweaking industry standards, in order to make it easier to bug and snoop, that is a deplorable and flawed policy. A patriotic American might well try to spare the blushes of American companies who were put in an impossible position by a combination of warrants and gagging orders, while finding some material that illustrated the policy under which such measures were taken.

Had Snowden published such documents, he might well have been prosecuted. American criminal justice officials do take a literal and stern view of the law and (as I have pointed out above) this administration is particularly and deplorably heavy-handed when it comes to dealing with whistleblowers. But he would have had the strongest case for a public interest defence, or a pardon if convicted. He would have been able to say truthfully that he had sought to do the least possible damage to intelligence sources and methods, and to the economic interests of the United States, and had focused his disclosure on the secret aspect of the NSA's activities which most Americans would find controversial. He could then have argued that any harm he did by breaching his oath of secrecy was outweighed by the public good. He might have faced prosecution and jail—but if he could prove that he had taken nothing else but a limited set of documents, whose publication was embarrassing but necessary and relevant, his defence, both in law and before public opinion, would have been stronger. But he didn't.

In fact, his behaviour does not meet the most elementary tests for justifying whistleblowing. Rahul Sagar, a professor at Princeton, has defined these well in his new book *Secrets and Leaks*:[73] First, a whistleblower